
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

Re:	)	CASE NO. 14-0187
Mental Health Counselor License of	)	
	)	SETTLEMENT AGREEMENT
AMY JO MURPHY	)	AND FINAL ORDER
License No. 00917	)	
Respondent.	)	

Pursuant to Iowa Code sections 17A.10 and 272C.3(4) (2013), the Iowa Board of Behavioral Science ("Board") and Amy Jo Murphy ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

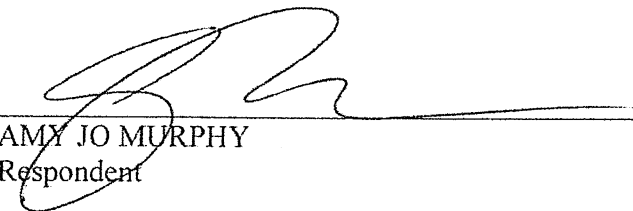
1. Respondent holds Iowa license number 00917 to practice as a mental health counselor, which is currently active and expires on September 30, 2016.
2. The Board has jurisdiction over the parties and the subject matter of these proceedings.
3. The Board filed a Notice of Hearing and Statement of Charges against the Respondent on November 6, 2014. A contested case hearing in this matter is scheduled for February 5, 2015.
4. The Statement of Charges contains five counts. Respondent admits the allegations related to Counts I, II, and III, but denies the allegation in Count IV. Respondent admits the allegation in Count V but denies that her actions were intentional. Respondent acknowledges that the allegations, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Settlement Agreement.
5. Upon the Board's approval of this Order, Count IV of the Statement of Charges is **DISMISSED**.
6. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Settlement Agreement. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
7. Respondent is freely and voluntarily entering into this Order.
8. Respondent acknowledges that she has the right to be represented by counsel on this matter.

9. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
10. This Order is subject to approval by a majority of the full Board. If the Board fails to approve this Order, it shall be of no force or effect to either the Board or Respondent. If the Board approves this Order, it shall be the full and final resolution of this matter.
11. This Order shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
12. Respondent acknowledges and understands that this Order will be reported to the National Practitioner Data Bank.
13. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.
14. The Board's approval of this Order shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

15. Respondent agrees to **VOLUNTARILY SURRENDER** her license to practice as a mental health counselor to resolve this matter.
16. This voluntary surrender, when accepted by the Board, has the same force and effect as an order of revocation under 645 IAC 12.1(5).
17. Respondent shall surrender her mental health counselor license to the Board immediately upon the Board's approval of this Order.
18. Respondent agrees not to use any words or titles which imply or represent that she is a licensed mental health counselor, or to otherwise hold herself out to the public as a licensed mental health counselor, or to engage in the practice of mental health counseling for which a license is required in the State of Iowa.
19. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.
20. Respondent may not request reinstatement for at least one year from the date of this Order. Prior to seeking reinstatement, Respondent must undergo a comprehensive mental health and boundaries evaluation with a Board-approved evaluator. Respondent shall ensure the evaluator has the entire investigative file prior to the evaluation. The evaluation must address Respondent's ability to safely practice as a licensed mental health counselor. Respondent may request reinstatement by filing an application for reinstatement under 645 IAC 11.31 and 31.17. Respondent's license shall not be reinstated except upon a showing by Respondent that the basis for revocation of her license no longer exists, and that it is in the public interest for the license to be reinstated.

This Settlement Agreement and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the ____ day of _____, 2015.



AMY JO MURPHY
Respondent

This Settlement Agreement and Final Order is accepted by the Iowa Board of Behavioral Science on the 5th day of February, 2015.



ERIK OOSTENINK, Chairperson
Iowa Board of Behavioral Science

cc: Laura Steffensmeier
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